

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jean Paul Lozada	Team: Squad #02	CCRB Case #: 201508122	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 09/25/2015 3:30 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/25/2017	Precinct: 83		
Date/Time CV Reported Fri, 09/25/2015 10:31 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 09/25/2015 10:31 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Nelson Ayala	08811	948015	083 PCT
2. POM Joseph Andersen	07757	937981	083 PCT
3. SGT John Musante	15	934019	083 PCT
4. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Michael Hansson	07623	949084	083 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT John Musante	Abuse: Sgt. John Musante stopped § 87(2)(b)	A . Exonerated
B . SGT John Musante	Abuse: Sgt. John Musante entered § 87(2)(b) in Brooklyn.	B . Substantiated
C . POM Nelson Ayala	Force: PO Nelson Ayala used physical force against § 87(2)(b)	C . Exonerated
D . POM Joseph Andersen	Force: PO Joseph Andersen used physical force against § 87(2)(b)	D . Exonerated
E . SGT John Musante	Abuse: Sgt. John Musante frisked § 87(2)(b)	E . Substantiated
F . SGT John Musante	Abuse: Sgt. John Musante searched § 87(2)(b) in Brooklyn.	F . Substantiated
G . An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b)	G . Officer(s) Unidentified
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On September 25, 2015, § 87(2)(b) filed this complaint with the CCRB via telephone on behalf of his brother, § 87(2)(b).

On September 25, 2015, at approximately 3:30 a.m., § 87(2)(b) was walking his dog with his brother § 87(2)(b) on § 87(2)(b) in Brooklyn when Sgt. John Musante, PO Nelson Ayala, PO Joseph Andersen, and PO Michael Hansson chased § 87(2)(b) in an unmarked RMP towards his apartment building at § 87(2)(b). § 87(2)(b) (**Allegation A**). The officers suspected § 87(2)(b) of attempting to break into a parked vehicle. The officers entered the building and § 87(2)(b) entered § 87(2)(b) and attempted to close the door. One officer allegedly held the door open with his foot while three officers allegedly attempted to push the door open (**Allegation B**). PO Ayala and PO Andersen pulled § 87(2)(b) out of § 87(2)(b) and into the hallway (**Allegations C and D**). PO Hansson frisked § 87(2)(b) (**Allegation E**) and then handcuffed § 87(2)(b). PO Ayala and PO Andersen entered the apartment and searched the backpack that § 87(2)(b) was allegedly wearing when the pursuit began, but discovered that there was nothing noteworthy in the backpack (**Allegation F**). While in the hallway, § 87(2)(b) discussed a prior arrest with one of the officers, who told § 87(2)(b) that he did not "beat the shit out of" him (**Allegation G**). The officers left without arresting or summoning anyone.

§ 87(2)(g) The investigator encountered significant difficulties in scheduling Sgt. Musante, PO Ayala, and PO Andersen. PO Andersen and PO Ayala were initially scheduled on November 12, 2015 to appear on November 25, 2015, and Sgt. Musante was originally scheduled on November 19, 2015 to appear on November 27, 2015. However, each of these officers requested to be rescheduled numerous times for various reasons. Sgt. Musante and PO Andersen were ultimately interviewed on December 10, 2015 and PO Ayala was interviewed on December 15, 2015.

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Mediation, Civil and Criminal Histories

- Mediation was offered to § 87(2)(b) during his CCRB interview on September 28, 2015. § 87(2)(b) rejected mediation § 87(2)(b).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- On December 18, 2015, an on-line Freedom of Information Law request was sent to the NYC Comptroller's Office for any notice of claim filed in regards to this incident (Board Review 03). Any responsive notice of claim will be added to the case file upon receipt.

Civilian and Officer CCRB Histories

- This is the third of three complaints in which § 87(2)(b) is named as a participant (Board Review 04).
 - § 87(2)(b)
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- This is the third of three complaints in which § 87(2)(b) is named as a participant (Board Review 05). § 87(2)(b) is named as a participant in § 87(2)(b)
- Sgt. John Musante has been a member of the NYPD for 11 years and has 18 prior CCRB allegations involving 8 cases with 4 substantiated allegations.
 - In case number 201205811, Sgt. Musante allegedly frisked and searched § 87(2)(b). The frisk was closed as substantiated and the search was closed as unsubstantiated. The Board recommended charges and the NYPD has not taken any disciplinary measures.
 - In case number 201210146, Sgt. Musante allegedly stopped § 87(2)(b)'s vehicle, searched a vehicle on two separate occasions, and frisked and searched § 87(2)(b). Both vehicle searches and the frisk were closed as substantiated and the vehicle stop and the search of person were closed as unsubstantiated. The Board recommended charges and the NYPD has not taken any disciplinary measures.
 - Sgt. Musante was a subject of Abuse – Stop allegations in case numbers 200513310 (exonerated) and 200700885 (complainant uncooperative).
 - Sgt. Musante was the subject of Abuse – Frisk allegations in case numbers 201205811 (substantiated), 201210146 (substantiated), and 201302149 (unsubstantiated).
- PO Nelson Ayala has been a member of the NYPD for 6 years and has 2 prior CCRB allegations involving 2 cases with no substantiated allegations.
 - PO Ayala was the subject of a Force – Physical Force allegation in case number 201301222. This allegation was closed as exonerated.
- PO Joseph Andersen has been a member of the NYPD for 10 years and has 2 prior CCRB allegations involving 2 cases with no substantiated allegations.
 - PO Andersen was the subject of a Force – Physical Force allegation in case number 201412032. This allegation was closed as complaint withdrawn.

Potential Issues

- The investigator made attempts to schedule § 87(2)(b) for an interview at the CCRB during numerous telephone calls, but § 87(2)(b) repeatedly stated that he was not ready to schedule an interview at the moment. Contact attempts to § 87(2)(b) were exhausted and, to date, § 87(2)(b) has not contacted the investigator to schedule an interview. As such, this case is being closed without a sworn statement from § 87(2)(b).
- § 87(2)(b) provided three videos that he filmed that show the interaction between § 87(2)(b) and three plainclothes officers in the hallway of § 87(2)(b). The

acoustics of the hallway are very poor and § 87(2)(b)'s dog is barking throughout the videos. In addition, due to technical difficulties, the investigator was unable to obtain the videos themselves and had to record videos of § 87(2)(b)'s videos. As such, the audio quality is very poor and much of the dialogue is unclear or inaudible.

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) stated that a 38-year-old, 6' tall stocky white or Hispanic male officer with black hair and in plainclothes pulled § 87(2)(b) out of the apartment and into the hallway. § 87(2)(g)
- Sgt. Musante was the highest ranking officer on scene and supervised the actions of PO Hansson, PO Andersen, and PO Ayala. § 87(2)(g)

Allegations Not Pleaded

- § 87(2)(g)

Allegation A – Abuse of Authority: Sgt. John Musante stopped § 87(2)(b)

Allegation C – Force: PO Nelson Ayala used physical force against § 87(2)(b)

Allegation D – Force: PO Joseph Andersen used physical force against § 87(2)(b)

§ 87(2)(b) stated that while walking his dog, he and § 87(2)(b) noticed an unmarked RMP parked at the corner of § 87(2)(b), and that after § 87(2)(b) turned the corner onto § 87(2)(b), the RMP “flew” past him and turned onto § 87(2)(b). The officers chased § 87(2)(b) into the hallway of his apartment building at § 87(2)(b) and did not say anything to § 87(2)(b) while they were in the RMP. § 87(2)(b) stated that § 87(2)(b) was only carrying a pack of cigarettes, a lighter, and his wallet and was not carrying a backpack. § 87(2)(b) stated that a 38-year-old, 6' tall stocky white or Hispanic male officer with black hair and in plainclothes pulled § 87(2)(b) out of the apartment and into the hallway, where he was handcuffed. The moment that § 87(2)(b) exited the apartment cannot be seen in any of the three videos shot by § 87(2)(b).

§ 87(2)(b)'s brother, § 87(2)(b) and their mother, § 87(2)(b) were in § 87(2)(b) for the entire incident. § 87(2)(b) stated that § 87(2)(b) exited the apartment and went to the hallway on his own. § 87(2)(b) stated that § 87(2)(b) was handcuffed in the living room and then pulled into the hallway by a 40- to 50-year-old, 140- to 160-pound uniformed white male officer with black hair and blue eyes.

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§ 87(2)(b) Sgt. Musante stated that as he and his officers were driving down § 87(2)(b) they observed § 87(2)(b) looking into a car window and heard the

car's alarm chirp once. The officers did not know what caused the alarm to chirp, but Sgt. Musante noted that § 87(2)(b)'s actions were consistent with the actions of someone who was about to break into a car and that the officers recognized § 87(2)(b) as a car break-in, burglary, robbery, and theft-related recidivist offender. Sgt. Musante stated that the officers identified themselves as officers and told § 87(2)(b) to stop ("Police, stop.") At this point, § 87(2)(b) appeared to throw a shiny object into a backpack and then ran to his apartment building at § 87(2)(b). None of the officers were able to state what this object was. PO Andersen, PO Ayala, and PO Hansson stated that they observed § 87(2)(b) place the item into or remove the item from his backpack *before* the officers identified themselves. The officers chased § 87(2)(b) to the hallway of his building, where PO Andersen and PO Ayala stated that they grabbed § 87(2)(b) by his arms, sleeve, and/or chest and pulled him away from the threshold of § 87(2)(b) and into the hallway, where he was handcuffed. PO Ayala and PO Andersen noted that § 87(2)(b) did not make it fully through the apartment's threshold when they grabbed him.

An officer's request for information "must be supported by an objective credible reason, not necessarily indicative of criminality." (People v. Hollman, 79 N.Y.2d 181 1992) An officer's verbal command for a civilian to stop constitutes "nothing more than a permissible request for information." (People v. Reyes, 83 N.Y.2d 945 1994) An officer may stop and detain an individual if he or she has suspicion that the individual has committed, is committing, or is about to commit a crime (People v. DeBour, 40 N.Y.2d 210 2010). An officer's founded suspicion that an individual is engaged in criminal activity may be escalated into reasonable suspicion to pursue upon the flight of the individual (People v. Williams, 2014 NY Slip Op 06338). Patrol Guide Procedure 203-11 authorizes an officer to use the minimum amount of physical force necessary at the scene of a police encounter. See Board Review 06.

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it is recommended that **Allegations A, C, and D** be closed as **exonerated**.

Allegation B – Abuse of Authority: Sgt. John Musante entered § 87(2)(b) in Brooklyn.

§ 87(2)(b) stated that when he entered § 87(2)(b), he observed § 87(2)(b) attempt to close the door to § 87(2)(b) while one officer (a 38-year-old, 6' tall stocky white or Hispanic male officer with black hair and in plainclothes) hold the door open with his foot while he and the remaining two officers attempted to push the door open. After § 87(2)(b) was

handcuffed, the officer that held the door open with his foot allegedly entered the apartment and searched the apartment for a total of approximately five minutes.

§ 87(2)(b)'s brother § 87(2)(b) stated that § 87(2)(b) entered the apartment and, an unknown amount of time later, officers banged on the door and screamed to let them inside. § 87(2)(b) opened the door and he and § 87(2)(b) refused to let the officers into the apartment. The officers ordered § 87(2)(b) to go to the hallway and § 87(2)(b) exited the apartment on his own. A 31-year-old, 6' tall white male officer in plainclothes with black hair then entered the apartment while the remaining two officers remained in the hallway.

§ 87(2)(b) stated that she was asleep when the officers initially arrived. When she went to the door, she observed a 40- to 50-year-old, 140- to 160-pound uniformed white male officer with black hair and blue eyes with his foot in the door and pushing the door open. § 87(2)(b) believed § 87(2)(b) opened the apartment's door. § 87(2)(b) attempted to push the door closed and refused to let the officers inside the apartment. This officer and an older, 5'8" tall, heavy-set mixed race officer with a round face and light brown skin who was partially bald and in plainclothes then entered the apartment without § 87(2)(b)'s or anyone else's permission and then brought § 87(2)(b) to the hallway.

In the video shot by § 87(2)(b) (Board Review 11), PO Ayala and Sgt. Musante can be seen entering the apartment. PO Andersen is not visible in any of these three videos. The videos show that PO Hansson remained in the hallway with § 87(2)(b)



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PO Ayala and PO Andersen both acknowledged entering the apartment and stated that they did so after requesting § 87(2)(b)'s consent to enter. PO Andersen stated that after he asked § 87(2)(b) to enter, she opened the door all the way and him inside, but he did not recall whether she verbally or affirmatively allowed him to enter the apartment. PO Andersen did not recall which officers entered the apartment besides himself. PO Andersen remained in the kitchen/living room area. PO Ayala stated that § 87(2)(b) entered the hallway and he asked her if he could look inside the backpack that § 87(2)(b) was carrying. § 87(2)(b) provided verbal consent to look inside the backpack and made a gesture that suggested that the officers were welcome inside the apartment. PO Ayala stated that he and PO Andersen entered the apartment and were in the apartment for ten seconds and that the officers looked inside the backpack as § 87(2)(b) held it open for them (see Allegation F). § 87(2)(g)

§ 87(2)(b). Sgt. Musante noted that he may have briefly entered the apartment after § 87(2)(b) gave her consent.

Warrantless entries into private residences are presumed unconstitutional, with exceptions for when consent is given, when officers are engaged in hot pursuit, or, provided that there is probable cause, when exigent circumstances arise, as established in People v. McBride (14 N.Y.3d 440 2010). See Board Review 06.

§ 87(2)(g)

§ 87(2)(g)
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[REDACTED]
[REDACTED], it
is recommended that **Allegation B** be closed as **substantiated**.

Allegation E – Abuse of Authority: Sgt. John Musante frisked § 87(2)(b)

In a video of the incident provided by § 87(2)(b) (Board Review 12), PO Hansson can be seen frisking § 87(2)(b) while his chest and hands are against a wall in the hallway. PO Hansson handcuffed § 87(2)(b) after frisking him. § 87(2)(b) made no mention of this frisk in his interview. § 87(2)(b) stated that an officer whom he could not recall patted § 87(2)(b) down in the hallway. § 87(2)(b) made no mention of § 87(2)(b) being frisked.



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PO Hansson stated that he frisked § 87(2)(b) because he wanted to see if he had any weapons. PO Hansson did not recall whether § 87(2)(b) had any bulges on his person. When asked whether § 87(2)(b) gave him a reason to believe that he was armed, PO Hansson replied that he observed an item going “to and from” § 87(2)(b)’s bag, so “he had something at some point,” but he was unable to specify what this item was.

PO Hansson prepared a UF250 for this encounter (Board Review 10), on which he checked that § 87(2)(b) was frisked. On this UF250, PO Hansson cited the reasons for this frisk as, “Verbal Threats of Violence by Suspect,” “Knowledge of Suspect’s Prior Criminal Violent Behavior/Use of Force/Use of Weapon,” “Furtive Movements,” “Actions Indicative of Engaging in Violent Crimes,” “Refusal to Comply With Officer’s Direction(s) Leading to Reasonable Fear For Safety,” and, “Violent Crime Suspected.” When asked whether § 87(2)(b) made any verbal threats towards him or his partners, PO Hansson stated that § 87(2)(b) said people were “out there to kill him” and that “people are gonna kill people,” which made him nervous. § 87(2)(b) did not threaten the officers with violence. PO Hansson checked “Knowledge of Suspect’s Criminal Violent Behavior/Use of Force/Use of Weapon” because § 87(2)(b) has been arrested over 32 times, including once by himself for burglary. PO Hansson explained that § 87(2)(b) is a burglary and robbery recidivist in the neighborhood and that he has robbed people with § 87(2)(b) in the past. PO Hansson checked “Furtive Movements” because § 87(2)(b) reached towards the car, reached into a bag, and “fumbled around.” PO Hansson noted that when § 87(2)(b) first saw the officers, he was “reaching all over” and ran away. PO Hansson checked “Actions Indicative of Engaging in Violent Crime” because he did not know whether § 87(2)(b) was removing a weapon from his bag with the intention of hurting officers or anyone else. PO Hansson checked “Refusal to Comply with Officer’s Direction(s) Leading to Reasonable Fear For Safety” because § 87(2)(b) did not comply with PO Hansson’s orders to stop. PO Hansson checked “Violent Crime Suspected” because § 87(2)(b) had something in the bag and

he did not know what was in the bag. PO Hansson believed this item could have been anything from a firearm to a stick, knife, or wedge. There was no reason to believe that § 87(2)(b) engaged in an act of violence towards another individual at the time.

Sgt. Musante acknowledged that § 87(2)(b) was frisked § 87(2)(g) § 87(2)(b). Sgt. Musante did not recall whether he directed PO Hansson to frisk § 87(2)(b) or whether PO Hansson frisked § 87(2)(b) on his own. PO Andersen assumed that § 87(2)(b) was frisked but noted that he did not observe this himself. PO Ayala also assumed that § 87(2)(b) was frisked by PO Hansson.

In order to frisk an individual, an officer must have reasonable suspicion to believe that the individual is armed (People v. DeBour, 40 N.Y.2d 2010). According to People v. Torres (74 N.Y.2d 224 1989), “A police officer acting on reasonable suspicion that criminal activity is afoot and on an articulable basis to fear for his own safety may intrude upon the person or personal effects of the suspect only to the extent that is actually necessary to protect himself from harm.” New York State Penal Law 70.02 lists all of the felony offenses that are considered violent, and grand larceny of an automobile does not appear on this list. See Board Review 06.

§ 87(2)(g) it is

recommended that **Allegation E** be closed as **substantiated**.

Allegation F – Abuse of Authority: Sgt. John Musante searched § 87(2)(b) in Brooklyn.

§ 87(2)(b) did not observe where the officers searched in the apartment because he was in the hallway and could not see into the apartment. However, he noted that there was a backpack near a fish tank in the living room and that the officers told § 87(2)(b) to open it for them. All that was in the backpack was § 87(2)(b)'s court paperwork.

§ 87(2)(b) stated that the officers said they wanted to search a backpack that was on the couch and he gave the backpack to the officer that entered the apartment. The officer searched through the backpack, which contained court paperwork. § 87(2)(b) did not know whether § 87(2)(b) had a backpack when he entered the apartment. The officer did not search anywhere in the apartment besides the backpack and returned to the hallway.

§ 87(2)(b) stated that an officer told her to open § 87(2)(b)'s backpack so he could look inside it and she complied.

officers' mouths cannot be seen because PO Hansson is standing with his back towards the camera and is blocking the view of Sgt. Musante's face. In addition, the tone of voice of the officer who made this statement is slightly different from the officer's tone of voice that can be heard immediately prior to and after this statement was made.



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Independent of the video, § 87(2)(b) recalled this statement as, "We didn't beat the crap out of you," but he did not attribute this statement to any particular officer. § 87(2)(b) recalled three officers being present and stated that all three officers cursed at § 87(2)(b) and made statements such as, "Calm the fuck down," and, "Shut the fuck up," but he made no mention of any officer saying, "Did we beat the shit out of you?" § 87(2)(b) did not hear any officer use any profanities. PO Hansson, Sgt. Musante, PO Ayala, and PO Andersen all denied making this statement or hearing any other officer do so. All four officers were unable to recognize the voice in the video.

§ 87(2)(g)

It is therefore recommended that **Allegation G** be closed as **officer(s) unidentified**.

§ 87(4-b), § 87(2)(g)

Squad: 2

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date